

EARLY MODERN WORKSHOP: Jewish History Resources

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***Taqqanot Qandiya* and the Construction of Crete's Jewish History**

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Source: Elias S. Artom and Umberto Cassuto, eds. *Statuta Iudaeorum Candiae [Taqqanot Qandiya U'Zikhronoteha]* (Jerusalem: Mekize Nirdamim, 1943), as derived from National Library of Israel Ms. Heb. 28°7203.

Introduction:

During the first half of the sixteenth century, Elijah Capsali, community leader and rabbi of the Jewish community of Candia (the capital of Venetian Crete), collected the communal ordinances and other materials (including some lists and responsa) he deemed relevant. Capsali was a self-conscious historian who also wrote Hebrew histories of the Ottoman Empire and of Venice. Nevertheless, his Cretan collection has rarely been treated in the context of Capsali's interest in history. Rather, it has been read as a collection of almost ad-hoc legal materials. I posit that Capsali edited these texts to construct an intentional record of his home community's history from the first days of its self-conscious organization as a formal *kehillah kedoshah* (qua corporate body) in 1228 through his own day, picking and choosing what to include and what to leave out, and in the process shaping a particular communal history for posterity. This form of record keeping was thus a mode of communal memory construction, and a tool for continuing the building of his chosen narrative with an eye toward the future.

Capsali's collection of his community's documents is now extant in only one known manuscript; it is held at the National Library in Jerusalem, but was previously part of the famed manuscript collection of David Solomon Sassoon in London. Otherwise, this manuscript's provenance is little known, though its editors in the 1940s, Artom and Cassuto, asserted that the scribe was, at least, not an Italian speaker.¹

The first two selections transcribed and translated here provide Capsali's self-conscious explanations of his project. The first is his general introduction to the manuscript, found at the very beginning of the text. The second is Capsali's introduction to a section which, sadly, no longer exists: transcriptions of the various laws and agreements (transcribed into Hebrew using Italian terms: *leggi*,

¹ Artom and Cassuto, *SIC*, no. 119, n. lines 1-11.

ordini, and terminazioni) composed by the Venetian government of Crete regarding the Jews of the island.

The third selection is one of Capsali's non-legal entries in the manuscript. It is a list of the significant accomplishments of some of the *condestabuli*, the official "presidents" of the Jewish community organization. Among the *condestabulo*'s main roles was to act as a liaison between the community and the Venetian colonial government on Crete. This list offers insight into Capsali's historical interests and the modes of decision-making that went into the construction of the collection; it also alerts us to the many types of sources Capsali accessed in constructing his work.

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Source: Elias S. Artom and Umberto Cassuto, eds. *Statuta Iudaeorum Candiae* [*Taqqanot Qandiya U'Zikhronoteha*] (Jerusalem: Mekize Nirdamim, 1943), as derived from National Library of Israel Ms. Heb. 28°7203.

Preliminary Translation of *Taqqanot Qandiya* by Rena N. Lauer and Kevin L. Osterloh

[Entry] 1

[NB: This first paragraph is written as if from the point of view of the “forgotten” Hebrew ordinances themselves:]

... {1} Why have we found favor in your eyes to recognize us? *Are we not thought of as strangers*¹ already for some length of time² in our community? Have we not been ashamed, sitting *in our dwelling outside the camp*?³ *What wrong have you found with us that you distanced yourselves from us?*⁴ *Have you not hated us and cast us out from among you, and why have you come to us now when you are in trouble*⁵? [...] *You shall not reject the work of his law and the spirit of the ruler, will a man walk with*⁶ *his [master] without knowledge?*⁷ ...

[NB: Here Elijah Capsali speaks as if responding directly to the ordinances:] *When Elijah heard it, he wrapped his mantle around his face,*⁸ *and he said, I am surely moved by zeal for the Lord, the God of Hosts, for they have forsaken your covenant*⁹ [...] ¹⁰ *they have torn down your altars,*¹¹ *and your high-places*¹² [...] of

¹ Paraphrase of Genesis 31:15.

² Lit. “For now some days and years.”

³ Paraphrase of Leviticus 13:46. The verse refers to a leprous person, thus the ordinances are comparing themselves to lepers.

⁴ Paraphrase of Jeremiah 2:5.

⁵ Paraphrase of Judges 11: 7. In context, Jephthah asks his brothers, who had previously cast him out for being the son of a prostitute, why they have come back and solicited him for leadership now that they are in dire straits.

⁶ “With” to express the expression “*hithalekh ish et*,” substituting Artom and Cassuto’s reading of *el* for *et*, as the original poem (see below) has it. This expression stems from Genesis 5:24.

⁷ A direct quote from Provencal poet-philosopher Yedaiah b. Abraham Bedersi’s fourteenth-century poem, *Behinat Ha-Olam*, chapter 9, verse 7. Artom and Cassuto seem to have not identified this origin. The missing text, “his master” [*adono*], can be now filled in conclusively.

⁸ I Kings 19:13.

⁹ Paraphrase of I Kings 19:14, replacing “your (sg.) covenant” (*britkha*) with “your (pl.) covenant” (*britkhem*). The plural “you” in this paragraph refers to the personified *taqqanot*.

¹⁰ This ellipsis is probably filled with the intervening text of I Kings 19:14, “the children of Israel” (*bnei yisrael*).

the Torah, bound up and given over to a neglected corner I have now come, for ___ the Torah I have come. *Peace be upon you, do not be afraid, your God, the God of your fathers, gave to us a treasure in your sacks, your money,¹³ silver purged in an earthen crucible refined sevenfold¹⁴ [...] to repair the community with you¹⁵ [...] an offering as in the days of those who held to you in your youth,¹⁶ we ourselves will cross over as vanguards¹⁷ to remove abominations from the land by your hands, for the Lord has taken note of his people to give them bread.¹⁸*

[The voice of the ordinances again:]

Wisdom [...] to rule over you, if your speech and your thoughts are in harmony among you, *come seek shelter in our shade,¹⁹ come up to us, drink our water, pick our fruit, suck out our marrow, come eat of our food, and drink of the wine we have mixed,²⁰* if you surely do this you will surely overcome [...]

{2-4} [NB: almost 3 illegible pages here]

[NB: Capsali's voice returns here:]

{5} [He?] will repair our breach, *and will instill in our hearts a new spirit,²¹* in order to keep and to do and to uphold every ordinance ___ and the precepts of our fathers, and we will no longer throw away our ordinances behind our backs, and we will no longer place our fences behind ___, and we will no longer set down our *taqqanot* [lit. repairs] behind our mistakes [lit. the things we break/spoil], and we will not throw behind our backs the words of our exalted leaders, and behind door and *mezuzah* we will not put our memories, *and all the people of the earth will see that the name of God is called upon us, and they will fear us.²²*

[What follows is a paragraph in Hebrew and Aramaic calling upon the leaders of the community to enforce the *taqqanot* by enforcing the punishments on those who transgress. Then, Capsali offers a metered poem repeating some of the same themes of this entry, with an acrostic spelling out "Elijah Capsali the son of Elkanah," with the final line beginning with the word *hazaq*, strong.]

¹¹ Paraphrase of I Kings 19:14, once again replacing "your (sg.) altars" (*mizbehotekha*) with "your (pl.) altars" (*mizbehotekhem*)

¹² An interesting reuse of *bamot*, usually a negative, here framed as a positive parallel to *mizbehot* (altars).

¹³ Paraphrase of Genesis 43:23.

¹⁴ Psalms 12:7.

¹⁵ The grammar of this phrase is not entirely clear. It may mean that the community will perfect or repair itself by means of the *taqqanot* (the "you" of this paragraph), or it may mean that another subject will bring together the community and the *taqqanot*. I prefer the former reading.

¹⁶ Meaning not entirely clear here.

¹⁷ Numbers 32:32.

¹⁸ Ruth 1:6.

¹⁹ Paraphrase of Judges 9:15.

²⁰ Paraphrase of Proverbs 9:5.

²¹ Paraphrase of Ezekiel 12:19.

²² Paraphrase of Deuteronomy 28:10.

[Entry] 119:²³

Until now God has helped us to fulfill our desires, *God desires [or: delights in] burnt offerings and sacrifices*,²⁴ legal ordinances, those whose corrections are intended to bring spiritual perfection and Torah values and divine benefits, so as to bring our soul within the tradition of the covenant, to establish it and to support it, so that Israel might know how to act. And now *I thought to myself*,²⁵ saying that it is good and right to place among them and next to them²⁶ the confirmations and the *leggi*²⁷ and the *ordini*²⁸ and the *terminazioni*²⁹ that the glorious administration of Venice, the august, may her dignity be exalted,³⁰ made, and may her kingdom be raised up in order to aid the Jews. And the general principle is that they³¹ are the entrance and the opening to spiritual perfection in this world, and because of them we will have peace in the world to come, and this is in accordance with the saying of the sage: *Without flour there is no Torah*,³² and without a doubt when we have peace and quiet, the flour container will never be finished, nor the cruet of oil, the purest extra virgin olive oil to light and to kindle the eternal flame of Torah, *nothing is missing from it*,³³ *from it the Rock of Israel shepherds*.³⁴

Therefore, *I have set my face like flint*,³⁵ to search out and seek from the mouths of scribes and the mouths of books all of the good *ordini* that were promulgated for our fathers because of their good effort for the needs of their community with earnestness. *I rise in the community and cry out*,³⁶ who is the man who planted a sapling of *mitzvah*, and made a *terminazione* and *ordine* for the aid of the whole? And *the herald proclaimed in a strong voice*,³⁷ and through this strong voice, they

²³ Following Artom and Cassuto's numbering scheme. In the extant manuscript, this entry follows the next section, but the scribe has written a marginal note explaining that this entry should actually come before. Contextual logic agrees, as do Artom and Cassuto, p. 153, n.

²⁴ Samuel I 15:22. Ironically, the passage from Samuel phrases this as a question, with the implicit answer that the ideal is not the sacrifice, but rather "obedience to the Lord's command." The verse continues, "Surely obedience is better than sacrifice, compliance than the fat of rams."

²⁵ Ecclesiastes 2:1, 2:15, 3:17, 3:18.

²⁶ I.e. it is good and right to place the Venetian legal documents among and next to the *taqqanot* of the community.

²⁷ Laws.

²⁸ Legal orders.

²⁹ Decision or agreements.

³⁰ Lit. "May its horn be raised."

³¹ I.e. the Venetian legal documents.

³² Mishnah Avot 3:17.

³³ Deuteronomy 8:9. The verse refers to the land of Israel

³⁴ Genesis 49:24. A phrase from Jacob's blessing to his son Joseph.

³⁵ Isaiah 50:7. In its biblical context, the simile means to feel no shame because of confidence in God's help. Here it suggests determination more broadly.

³⁶ Job 30:28. I have translated *kahal* as "community" as Capsali intends to use the word; the biblical text likely uses *kahal* qua "assembly."

³⁷ Daniel 3:4.

will go out from strength to strength,³⁸ each man with whom are found *leggi* and *ordini*, let him come forward *to the aid of God among the warriors*,³⁹ and hand them over to the one who is managing the labor. *My heart is with the leaders {349} of Israel, with the dedicated of the people—Bless the Lord.*⁴⁰ And all with whom are found *leggi* and *ordini*, put them in my hands and I will copy them in this book, *they will be carefully placed between its lines*,⁴¹ in order that they last for many days, and anyone who needs it, *his food will be supplied and his drink assured*,⁴² (as if) *on the palm [of my hands] I have engraved them*,⁴³ and immediately he will find what he seeks, and it will no longer be *like the word of a sealed document*,⁴⁴ for many of those who needed them did not know their whereabouts and where they are found, and they would need to search for them with effortful pursuit, and beyond this there was a financial loss, because each time they squandered (money), *a price was paid in Israel*.⁴⁵ Who is so wise as to understand these things, that *the Torah protects the money of Israel*,⁴⁶ as it is written, “...and provide drink for the congregation and for their beasts,”⁴⁷ and as it is written, “The priest shall order the house cleared, etc.,”⁴⁸ and according to the rabbis of blessed memory, the text is referring to an earthenware vessel, that it should not be broken, etc.⁴⁹ These two rationales *supported my hands, one on each side, thus my hands remained steady until*⁵⁰ I will have copied all that my hand has found for the benefit of our congregation, *a heritage of the congregation of Jacob*,⁵¹ and it will be that anyone who seeks the common good will approach this book, *and to he who goes on that path, I will show the salvation of God*,⁵² and no

³⁸ The word play is somewhat lost in this translation. Both “strong voice” and “strength” are translations of the catch-all term “*hayil*,” which can also mean “valiantly.”

³⁹ Judges 5:23. From the Song of Deborah. Capsali is taking a negative (those who do not come to the aid of God are cursed) and reusing the expression to focus on those who will come to “God’s aid.”

⁴⁰ Judges 5:9. From the Song of Deborah.

⁴¹ A paraphrase and play on Job 24:11, replacing *yatzhiru* (“they make oil”) with *yazhiru* (“they are careful”). The original means “between the rows they make oil.”

⁴² Isaiah 33:16.

⁴³ Paraphrase of Isaiah 49:16.

⁴⁴ Paraphrase of Isaiah 29: 11.

⁴⁵ This is a punning reuse of Judges 5:2, from the Song of Deborah. In the biblical context, the verse seems to literally mean “when locks [of hair] go untrimmed in Israel,” i.e. as a sign of dedication. Here, the same root p-r-‘a is used in its meaning of “to pay.” Artom and Cassuto explain that this means that each time a Jew needed a Venetian-granted privilege (say, to confirm it in court), but had lost it, s/he had to pay a fee to get another copy.

⁴⁶ A rabbinic principle articulated, among other locations, in TB Menahot 76b, meaning that the Torah (and rabbinic law) does not allow (or force) behaviors that create an unreasonable financial burden. See below, n. 49.

⁴⁷ Numbers 20:8.

⁴⁸ Leviticus 14:36.

⁴⁹ Mishnah Negaim 12:5 interprets the selection from Leviticus 14:36, that when a diseased patch appears on a house, before the priest comes to inspect it, it should be emptied. The Mishnah asserts that it should be emptied of even the least valuable items that could not be purified, i.e. earthenware vessels and other low-worth items, so that these items will not be declared impure and ordered destroyed. This is a *locus classicus* for the principle that the Torah protects Jews from financial burden.

⁵⁰ As Aaron and Hur supported Moses’ hands during the battle with Amalek; paraphrasing Exodus 17:12.

⁵¹ Deuteronomy 33:4.

⁵² Psalms 50:23.

one will have to burden themselves anymore or to squander or to waste *charity that he might disseminate in Israel*.⁵³

And because not all of the *ordini* that were promulgated in honesty and uprightness for the benefit of the community have been made known to me, *for a great dark dread descended upon them*,⁵⁴ because of the length of time and on account of the troubles which have encircled us and surrounded us, *lashed tightly, bound upon our necks*,⁵⁵ distressing us. And (since) they have not all been made known to me so that I might include them⁵⁶ in the memory book of the children of Israel, I have left a place herein to systemically arrange the *ordini of which my ears have not caught any whisper*.⁵⁷

Therefore *the man who fears the Lord shall be blessed*,⁵⁸ from the remnants whom the Lord has summoned to service before the community, who come by way of laws and *ordini* for the benefit of the holy {350} community, may its Rock keep it and grant it life⁵⁹: those [legal documents] which were made in the first days long ago, or those which are renewed in each generation, in each family, for the benefit of the community, *for the community there should be one law for them*.⁶⁰ All which their hand might find to make (available) by their power for common benefit, let them copy it here, and *forever with iron stylus and lead*,⁶¹ so that they will last for many days, and *they will not cease to yield the fruit*⁶² of righteousness. They are the tree of life *to him who finds them, and to their whole bodies, a healing*⁶³ *tongue is a tree of life*⁶⁴ [allowing one] to avoid deadly snares,⁶⁵ *and the stability of his times shall be a hoard of salvation*,⁶⁶ the inheritance of Ariel, *no longer will our name be anything but Israel*.⁶⁷

⁵³ A pun on Judges 5:11, exchanging *pirzono* (“his deliverance”) for *pizrono* (lit. “his dispersion,” but here translated in context), and *tzedakot* reinterpreted to mean literal charity funds, as the plural of *tzedakah*. The original context means something like, “His gracious deliverance of Israel.”

⁵⁴ Paraphrase from Genesis 15:12.

⁵⁵ Lamentations 1:14.

⁵⁶ I.e. to include them presently.

⁵⁷ Paraphrase from Job 4:12.

⁵⁸ Psalms 128:4.

⁵⁹ *Yishmereihu tzuro vi-hayeihu*

⁶⁰ Numbers 15:15.

⁶¹ Job 19:24.

⁶² Paraphrase of Jeremiah 17:8.

⁶³ Paraphrase of Proverbs 4:22.

⁶⁴ Paraphrase of Proverbs 15:4. The previous quotation ends with “healing” (*marpeh*), and this new quotation begins with the same word. Capsali conflates the two to create new meanings.

⁶⁵ Paraphrase of Proverbs 14:27. The previous quotation ends with “life” (*hayyim*), and this new quotation begins with the same word.

⁶⁶ Paraphrase of Isaiah 33:6.

⁶⁷ Paraphrase of Genesis 32:29, the moment in which Jacob’s wrestling opponent gives him the name Israel.

He propels his pen, *the vain pen of scribes*,⁶⁸ *despised and shunned by men*,⁶⁹ Elijah Capsali the younger, son of my master, my father, and my teacher, the wise man, with honor to my teacher, Elkanah, may he live forever, who writes by guidance of the lines below⁷⁰, as a minor servant who has been found for our community, the holy community of Candia, may its Rock keep it and grant it life.⁷¹ Today, in the year of “Let God give comfort for the evil,”⁷² on 18 Heshvan, they deemed my plan to be for the common benefit, and I included for them all that is found in the book to aid them, for by these (rulings) *we will live among the nations*,⁷³ *until a spirit from on high is poured out on us*,⁷⁴ *and a redeemer comes to Zion*,⁷⁵ *and let our eye gaze on Zion*⁷⁶ and on the building of Ariel. And in merit of this (I have become) *a man redeemed by the Rock* [Ben Pedahtzur], *God is also for me* [Gamliel],⁷⁷ *then our mouths will be filled with laughter*,⁷⁸ with strength, and as for me, *to the Lord I will sing, I will hymn to the Lord, God of Israel*.⁷⁹

Blessed is God who has given rest to his people Israel,⁸⁰ and has put us in a state of grace and favor in the eyes of our masters, the lords of Venice, and they have established for us all of the privileges found below, and we have found rest among the nations whence God has banished us, may the Lord our God be with us as he was with our fathers. Eternal Amen Selah.

[Entry] 46:

Here are a few of the venerable *condestabuli*,⁸¹ may their souls be bound in the bundle of life, who strived honestly for the needs of their community, and made *terminazioni*⁸² to help the community, may its Rock keep it and grant it life.

⁶⁸ Jeremiah 8:8.

⁶⁹ Isaiah 53:3. A statement of humility typical of Elijah Capsali.

⁷⁰ Apparently where he uses Job 24:11.

⁷¹ *Yishmereihu tzuro vi-hayeihu*.

⁷² A play on the numerical value of the letters H-R-‘A-H, “evil,” 5280. Artom and Cassuto give the secular date of 13 October 1519.

⁷³ Lamentations 4:20.

⁷⁴ Isaiah 32:15.

⁷⁵ Isaiah 59:20.

⁷⁶ Micah 4:11.

⁷⁷ A perhaps confusing pun on the biblical character Gamliel (“also for me is God”) ben Pedatzur (“Rock redeemer”), the representative of the tribe of Menasheh in Numbers 1: 10. I have configured a translation with some meaning, as reasonably as possible.

⁷⁸ Psalms 121:2.

⁷⁹ Judges 5:3, from the Song of Deborah.

⁸⁰ I Kings 8:56.

⁸¹ *Condestabulo* (pl. *condestabuli*): Venetian dialect, term for the president of the Jewish community, an elected position (perhaps annually or biannually) recognized by the Venetian government. The *condestabulo* spoke as the official representative of the Jews to the Venetian colonial government on Crete.

⁸² *Terminazioni* (sg. *terminazion*): Venetian dialect, word for an agreement or decision made by the Venetian government.

When the honorable R. Elijah Parnas was *condestabulo* for our community, may its Rock keep it and grant it life, he made a *terminazion* through the administration, may her dignity be exalted,⁸³ on behalf of the synagogue of Elijah the Prophet, which was closed because of our great sins, that no *goy* be allowed to touch it, to destroy it, from its walls to its doors, and that they will not defile it, throwing into it anything filthy, on fine of on hundred ducats.

When the honorable R. Elijah Nomico was *condestabulo* for our community, he made a *terminazion* regarding all those who enter the synagogues to steal a *perutah* or more, that he will be flogged around the city, and he also made many *terminazioni* to help the community, may it live forever.

{90} In the time when the honorable R. Joseph Missini was *condestabulo* for the community, he acted regarding the one who cursed the great leaders of the community who were in prison, and the administration punished him⁸⁴ (with a fine of) a hundred dinars, and this was during the time of Duke Bembo.

When the honorable R. Malkiel Casani was *condestabulo* for our community, he made a *terminazion* regarding the one who slandered the virgin girls of Israel, that they would punish him and flog him around the city and that he would be jailed. And he did this, and they punished one Sicilian and flogged him and incarcerated him, and this happened with the agreement of the majority of the venerable leaders and Torah scholars of our community, may its Rock keep it and grant it life.

At the time when the venerable R. Abba Delmedigo the Elder, may his memory be a blessing, was *condestabulo* for the community, he made a *terminazion* regarding the keeping of Passover, that the wagon⁸⁵ would not be moved from the Jewish quarter⁸⁶ all of the days of the vigil. After this the rabbi R. Hayyim Missini, may his memory be a blessing, strengthened this *terminazion*.

19 January 1439.

At the time when Messer Luca Tron was duke, and at the time when the honorable R. Jeremiah Capsali, son of the honorable R. Moses, may his memory be a blessing, was *condestabulo* for the community, he made a judgment regarding the rebellion,⁸⁷ that one Jew wanted to marry a women who was betrothed to another, as is explained in the judgments in the records of the *dieti*, as is written below in his *petizion*, and no one did it again, on pain that he would be punished and banished.

⁸³ Lit. "May its horn be raised."

⁸⁴ I.e. the government punished the man who cursed the Jewish community leaders.

⁸⁵ *Rehev*, lit. a wagon or vehicle, perhaps referring to a mobile flour mill?

⁸⁶ Here, *kahal* means the physical space of the Jewish quarter, a typical usage in this manuscript.

⁸⁷ *Ha-mered*. Unclear usage.

At the time when the erudite scholar, the honorable R. Protho Spatael was *condestabulo* for the community, he made a *terminazion* regarding issues to help the community, and this was at the time of Duke Messer Donado, as is written in his *Memorial*,⁸⁸ and he also acted regarding the “cantors.”

{91} When our teacher, the rabbi, R. Moses the son of the honorable R. Abba Delmedigo was *condestabulo* for the community, he made a *terminazion* regarding those who “make *galut*” for the Jews,⁸⁹ that they allowed the Jews to buy from the market at any time they want, and no one will impede with their hands.

When the honorable R. Ephraim Delmedigo was *condestabulo* for our community, he made a *terminazion* regarding the Jewish dead, that the goyim were not allowed to strip them, and whoever did this was punished with the punishment of a thief, and so one goy went and was digging at night for the daughter of honorable R. Crosoli (?) Catalan, her jewelry was taken from her, and the aforementioned *condestabulo* was told about it, and immediately he took with him some of the Jewish young men who are in our community, and they ran to the cemetery, and found the *goyim* digging there, and they caught them and brought them to jail, and the duke ordered that they be flogged near the cemetery, and he also punished them⁹⁰, and they were in jail for a long time. From this was done a great salvation for Israel, that before this there had been great anguish for our community about this, and this happened during the time when Messer Bernardo Balbi was duke, may his dignity be exalted.⁹¹

When the honorable R. Zachariah Protho [was *condestabulo*], he made a *terminazion* that no one can curse the *condestabulo* and his councillors on fine of fifty dinars.

When the honorable R. Jacob Abbis was *condestabulo* for our community, he made a *terminazion* that the Jews be allowed to buy from the market foodstuffs for the sake of selling to other Jews.

At the time when Messer Leone Dudo⁹² was duke, may his dignity be exalted,⁹³ and in the time when our teacher, the rabbi, R. Judah Havivi {92} was *condestabulo* for the community, he made *ordini* regarding the butchers so that

⁸⁸ *Memoriali* are one type of ducal chancellery registers. These are now held at the *Archivio di Stato* in Venice.

⁸⁹ Artom and Cassuto explain that this is an Italian Jewish expression that means “to mock Jews.”

⁹⁰ Likely financially, i.e. a fine.

⁹¹ Lit. “May his horn be raised.”

⁹² Or better, Duodo. Leone Duodo was duke of Crete in the late 1450s.

⁹³ Lit. “May his horn be raised.”

they would be divided,⁹⁴ on fine of a hundred dinars, as it is written in the *distesa*⁹⁵ of the notary Acide.

At the time that the honorable R. David Capsali, may his memory be a blessing, was the *condestabulo* for our community, may it live forever, there was a great famine across the entire island of Crete, and people were dying of starvation, and he made a *terminazion* that they would give from the administration's flour also to the Jews a certain number of *eiphot*⁹⁶ each week, and so did the honorable aforementioned *condestabulo*: he would take the flour each week in his house, and he would knead and bake it and distribute it to the poor. He also made a *terminazion* that no one was allowed to fill up or to close the large well that was made for the workers and the rest of the community, may it live forever, for their needs, and this was during the time of Duke Moro,⁹⁷ may his dignity be exalted.⁹⁸

At the time of the honorable R. Abba Delmedigo, son of the rabbi, R. Shemarya, may his memory be a blessing, he made through the agency of his brother, our teacher, the rabbi, R. Moses, with Messer Jeronimo Lando, the Archbishop, many agreements to help the community, and for example regarding the Torah scroll that they took out for the archbishop, and likewise many other things for our aid, and Messer Jeronimi excommunicated anyone who transgressed his orders.

When the honorable R. Elisha Astruc was *condestabulo*, he made a *terminazion* regarding the butchers who go outside of the city to purchase,⁹⁹ and that no one is allowed to assault them and steal livestock from them, and the administration places a fine on *castellani*.¹⁰⁰

When the honorable R. Shabbetai Barbigna was *condestabulo* for our community, he made a *terminazion* regarding feast days, that upon them Jews could {93} labor inside in the community.

When the honorable R. Shabbetai Casani was *condestabulo* for our community, he acted regarding the "cantors," that they would be under the authority of the *condestabulo* and his councilors, and that they must show him an accounting of the goods of the synagogue, and also many *terminazioni* to help the community.

⁹⁴ Artom and Cassuto understand this strange phrase to mean that the butchers would not unite in a sort of guild, which would make them liable to fix prices without competition.

⁹⁵ Apparently, the specific content, i.e. that which is found in the notarial records of this particular Latin notary.

⁹⁶ A fairly large biblical and rabbinic dry measurement, not actually used as a measurement in Crete and thus just suggestive of some significant amount of flour.

⁹⁷ Or better, Mauro, perhaps Lorenzo Mauro, who was the duke of Crete in early 1460s.

⁹⁸ Lit. "May his horn be raised."

⁹⁹ I.e. they went to the rural areas to purchase livestock to be brought back to the kosher slaughterhouse in Candia.

¹⁰⁰ *Castellani* are those who lived in the fortress towns (*castelli*) beyond Candia. Ostensibly, the Venetian government had placed a mandatory fine on the fortress dwellers (and likely other rural folk) who engaged in such highway robberies and assaults.

Know that the honorable R. David Mavrogonato, through his good intervention, when he was an agent of the administration, made many agreements for our benefit, regarding feast days, regarding the *parola*¹⁰¹ on Sabbath and holiday eve; and that ten people could go with one candle at night. And this he also did for the fortress residents¹⁰², and he strived for the needs of his community with faith. May his soul be bound in the bundle of life.

¹⁰¹ Unclear usage; perhaps referring to court cases.

¹⁰² Some Jews lived in a number of the *castelli*, as evinced by other *taqqanot* and Latin ducal chancellery materials.

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Taqqanot Qandiya and the Construction of Crete's Jewish History

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Source: Elias S. Artom and Umberto Cassuto, eds. *Statuta Iudaeorum Candiae [Taqqanot Qandiya U'Zikhronoteha]* (Jerusalem: Mekize Nirdamim, 1943), as derived from National Library of Israel Ms. Heb. 28°7203.

*NB: Curly-bracketed letters {} indicate manuscript page numbers, according to the pagination of the manuscript. Square brackets with ellipses [...] indicate long stretches of illegible text, according to Artom and Cassuto's rendering. Underscore _ lines indicate a few illegible words. Square brackets with text [] indicate suggested readings, per Artom and Cassuto.

א

... {א} מדוע מצאנו חן בעיניך להכירנו, הלא נכרים נחשבנו זה כמה ימים ושנים בקהלתנו, הלא נכלמנו וישבנו מחוץ למחנה מושבנו, מה מצאתם בנו עול כי רחקתם מעלינו, הלא אתם שנאתם אותנו ותגרשונו מאתכם, ומדוע באתם אלינו עתה כאשר צר לכם [...] מלאכת חקו ורוח המושל לא תמאסהו, היתהלך איש אל [אדונו]¹ בבלי דעת...

כשמוע אליהו וילט פניו באדרתו ויאמר קנא קנאתי לי"י אלהי צבאות כי עזבו בריתכם [...] את מזבחותיכם הרסו, ואת במותיכם [...] של תורה הכרוכה ונתונה בקרן זוית עתה באתי, על _ תורה באתי, שלום לכם אל תיראו, אלהיכם ואלהי אביכם נתן לנו מטמון באמתחותיכם, כספכם כסף צרוף בעליל [לארץ] מזוקק [שבעתים] [...] להשלים הקהל עמכם [...] מנחה כימי בני בחוריכם, נחנו נעבור חלוצים להעביר שקוצים מן הארץ על ידיכם, כי פקד י"י את עמו לתת להם לחם.

חכמות [...] למלוך עליכם, אם פיכם ולבכם שוים עמכם, באו חסו בצילנו, עלו אלינו, שתו מימינו, לקטו פריינו, מצצו חלבנו, לכו לחמו בלחמנו, ושתו ביין מסכנו, עשו תעשו [י]כול תוכלו

{ב ד} [...]

{ה} יגדור פרצנו, ורוח חדשה יתן בקרבנו, לשמור ולעשות ולקיים את כל גדר _ ודברי אבותינו, ולא נזרוק עוד גדרינו אחרי גבינו, ולא נשים עוד סייגנו אחרי _ , ולא נשכין תקנותינו אחרי קלקלותינו, ולא נשליך מאחרי גוינו דברי גאונים, ואחר הדלת והמזוזה לא נשים זכרוננו, וראו כל עמי הארץ כי שם י"י נקרא עלינו, וייראו ממנו.

¹ Artom and Cassuto were not aware that this quote came from *Behinat Ha-Olam*, and thus did not fill in this lacuna.

קיט

עד הנה עזרנו י"י להשלים חפצנו, חפץ לי"י בעולות וזבחים, בגדרים התוריים, המיישרים אל השלמיות הנפשיות, ואל המדות התוריות, הטובות האלהיות, להביא נפשנו במסורת הברית, להכין אותה ולסעדה, לדעת מה יעשה ישראל. ועתה אמרתי אני בלבי לאמר כי טוב וישר הוא להשים אצלם וסמוך להם הקיומים והליז"י והאורדיני"י והטרמנציונ"י שעשת שררת והדרת וויניזיא"ה הרמתי י"ק ותנשא מלכותם לעזר היהודים, והכלל כי הם מבוא ופתח אל השלמיות הנפשיות בעולם הזה, ובגללם שלום יהיה לנו בעולם הבא, והוא על דרך מאמר החכם אם אין קמח אין תורה, ובזולת ספק בהיות לנו ההשקט והשלום כד הקמח לא תכלה, ואז צפחת השמן, שמן זית זך כתית למאור להעלות נר התורה תמיד, לא תחסר כל בה, משם רועה אבן ישראל.

על כן שמתי פני כחלמיש, לחפש ולבקש מפי סופרים ומפי ספרים את כל האורדיני הטובים אשר נעשו לאבותינו בהשתדלותם הטוב בצרכי צבורם באמת, קמתי בקהל אשוע, מי האיש אשר נטע נטיעה של מצוה, ועשה טרמנציון ואורדיני לעזר הכלל, וכרוזא קרי בחיל, בתוך החיל, יצאו מחיל אל חיל, כל איש אשר נמצא אתו ליזי ואורדיני יבואו לעזרת י"י בגבורים, ויתנום על ידי עושה המלאכה, לבי לחוקקי {שמט} ישראל, המתנדבים בעם ברכו י"י, וכל אשר נמצא אתו ליזי ואורדיני הביאום בידי ואעתיקם בספר הלז, בין שורותיו יזהיר"ו, למען יעמדו ימים רבים, וכל הצריך מהם לחמו נתן מימיו נאמנים, הן על כפים חקותים, ותכף ימצא את אשר יבקש, ולא יהיו עוד כדבר הספר החתום, כי רבים מהצריכים להם לא היו יודעים מושבם ואנה נמצאים, והיו צריכים לחפש אחריהם בחפוש ובבדיקה, וזולת זה כי היה אבוד ממון, שבכל פעם היו מפזרים, בפרו"ע פרעות בישראל. מי חכם ויבן אלה, שהתורה חסה על ממונם של ישראל, דכתיב והשקית את העדה ואת בעירם, וכתוב וצוה הכהן ופנו את הבית וגו', ודרז"ל בכלי חרש שלא ישברו הכתוב מדבר וכו', שתי אלה הסבות תמכו בידי, מזה אחד ומזה אחד, ויהי ידי באמונה עד העתיקי כל אשר מצאה ידי לעזר קהלתנו, מורשה קהלת יעקב, ויהי כל מבקש תועלת הכלל יצא אל הספר הזה, ושם דרך אראנו בישע הקהל, ולא יצטרך עוד לטרוח ולפזר ולבזבז צדקות פזרונו"ו בישראל.

ומאשר לא נודעו אלי כל האורדיני שהם עשויים באמת וישר לעזר הכלל, כי אימה חשכה גדולה נפלה עליהם, לאורך הימים והשנים ולסבת הצרות אשר סבבונו הקיפנו השתרגו עלו על צוארנו וילחצונו, ולא נודעו אלי כלם להעלותם בספר זכרון לבני ישראל, הנחתי מקום להתגדר בו האורדיני אשר לא לקחה אזני שמץ מהם.

על כן יבורך גבר ירא י"י, מהשרידים אשר י"י קורא לעמוד לפני העדה לשרתם, אשר יבאו בידי ליזי ואורדיני לתועלת הקהל {שנ} הקדוש יצ"ו, אשר כבר נעשו בימים ראשונים חלפו למו, או אשר יתחדשו מדור דור, משפחה ומשפחה, לתועלת הקהל, הקהל חקה אחת להם, כל אשר תמצא ידם לעשות בכחם לעזר הכלל, יעתיקום הנה, ולעד בצור יחצבון, למען יעמדו ימים רבים, ולא ימוש מעשות פרי צדיק, עץ חיים הם למוצאיהם ולכל בשרם מרפא לשון, עץ חיים לסור ממוקשי מות, והיה אמונת עתנו חוסן ישועות נחלת אריאל, לא יאמר שמנו כי אם ישראל.

מניע עטו, עט שקר סופרים, נבזה וחדל אישים, אליהו קפשאלי הקטן בלא"א ורבי הכ"ר אלקנה י"ל, הכותב בידי שורות הנ"ל, כמו משרת קטן הנמצא לקהלתנו, ק"ק קנדיאה יצ"ו, היום, שנת וינחם י"י

על הרע"ה, בי"ח חשון, חשבו רעיוני תועלת הכלל, וכללתי להם כל הנמצא כתוב בספר לעזרתם, כי בהם נחיה בגוים, עד יערה עלינו רוח ממרום ובא לציון גואל, תחז בציון עיננו ובבנין אריאל, ובזכות זה בן פ"דה צור גם ל"י אל, אז ימלא שחוק פינו בכח ואל, אנכי ל"י אנכי אשירה אזמר ל"י אלהי ישראל.

ברוך י"י אשר נתן מנוחה לעמו ישראל, ונתננו לחן וחסד בעיני אדונינו אדוני ויניזיאה, וקיימו לנו כל הקיומים הנ"ל, ומצאנו מנוחה בגוים אשר הדיחנו י"י שמה, יהי י"י אלהינו עמנו כאשר היה עם אבותינו. אב"ס.

מו

אלה הם קצת מהנכבדים הקונדושטבלי תנצב"ה, שהשתדלו בצרכי צבורם באמת, ועשו טרמנציוני לעזר הקהל יצ"ו.

בהיותו הנ"ר אליהו פרנס קונדישטבלי לקהלתנו יצ"ו, עשה טרמנציון ע"י השררה י"ק בעד ב"ה של אליה הנביא שנסגר בעונותינו הרבים, שלא יהיה שום גוי רשאי לשלוח יד בו להרוס מקורותיו ודלתותיו, ושלא יזלזלהו, לשפוך אצלו דבר של טנוף, בקנס דוקטי מאה.

בהיותו הנ"ר אליהו נומיקו קונדושטבלי לקהלתנו, עשה טרמנציון בעד כל מי שיכנס בבתי כנסיות לגנוב מפרוטה ומעלה שיכוהו סביב העיר, וגם עשה טרמנציון רבים לעזור הקהל י"ל.

{צ} בזמן הנ"ר יוסף מישיני קונדושטבלי לקהל, עשה בעד מי שיקלל גדולי הקהל שיעמוד בסוהר, ויענישוהו השררה דינרים מאה, וזה היה בזמן הדוכוס בימבו.

בהיותו הנ"ר מלכיאל קזאני קונדושטבלי לקהלתנו, עשה טרמנציון בעד מי שמוציא שם רע על בתולות ישראל, שיענישוהו ויכוהו סביב העיר ויעמוד בסוהר, ועשה והענישו ציציליאנו אחד והכוהו ואסרוהו, וזה היה בהסכמת יתר הנכבדים ובעלי תורה לקהלתנו יצ"ו.

בזמן הנ"ר אבא דלמדיגו הזקן ז"ל קונדושטבלי לקהל, עשה טרמנציון בעד שמירות הפסח, שלא יזוז הרכב מהקהל כל הימים ששומר, אחרי כן חזק הטרמנציון הנ"ל הר"ר חיים מישיני ז"ל.

י"ט יינרי אתל"ט.

בזמן משי' לוקא טרון דוקוס, ובזמן הנ"ר ירמיה קפשאלי בכ"ר משה ז"ל קונדושטבלי לקהל, עשה פסיק דין בעד המרד, שרצה יהודי אחד לקדש אשה שהיתה משודכת לאחר, כמבואר בפסק דין בפנקס דייטי, ככתוב למטה בפיטציון שלו, ולא יעשהו אחר עוד, בקנס שיענישוהו ויגרשוהו.

בזמן החכם הכולל הנ"ר פרוטו שפטאל קונדושטבלי לקהל, עשה טרמנציון בעד העניינים לעזר הקהל, וזה היה בזמן דוקוס מישיני דונדו, ככתוב במימוריאל שלו, גם עשה בעד החזנים.

{צא} בהיותו מהר"ר משה בכ"ר אבא דלמדיגו קונדושטבלו לקהל, עשה טרמנציון בעד עושה הגלות ליהודים, ושיוכלו היהודים לקנות מהשוק כל זמן ועת שירצו, ולא יעכב אחד בידם.

בהיותו הנכ"ר אפרים דלמדיגו קונדושטבלו לקהלתנו, עשה טרמנציון בעד מתי ישראל, שלא יכלו הגוים להפשיטם, ומי שיעשהו יענש כעונש גנב, וכך הלך גוי אחד והיה חופר בלילה בעד בת כ"ר כרושולי קטלן, ליקח לה תכשיטיה, והגידוהו לקונדושטבלו הנ"ל, ולקח עמו תכף קצת מבחורי ישראל אשר בקהלתנו, ורצו בבית חיים, ומצאו שם הגוים חופרים, ותפסו אותם והוליכום בסוהר, וצוה הדוקוס והכום סביב לבתי חיים, והענישום ג"כ, ועמדו זמן הרבה בסוהר, ומאז נעשת תשועה גדולה לישראל, אשר מקודם לכן היה צער רב לקהלתנו בזה, וזה היה בזמן משי' בירנרדו בלבי הדוקוס יר"ק.

בהיותו הנ"ר זכריה פרוטו, עשה טרמנציון שלא יהיה שום אחד רשאי לקלל הקונדושטבלו וחשבניו בקנס דינרים חמשים.

בהיותו הנכ"ר יעקב עביס קונדושטבלו לקהלתנו, עשה טרמנציון שיוכלו היהודים לקנות מהשוק מיני אוכל למוכרים ליהודים.

בזמן משי' ליאון דודו דוקוס יר"ק, ובזמן מהר"ר יודא חביבי {צב} קונדושטבלו לקהל, עשה אורדיני בעד הקצבים שיהיו נחלקים, בקנס דינרים מאה, ככתוב בדישטיזא על ידי אצידי נודר.

בזמן הנכ"ר דוד קפשאלי ז"ל קונדושטבלו לקהלתנו י"ל, היה רעב גדול בכל אי קנדיאה, והיו מתים מהרעב, ועשה טרמנציון שיתנו מקמח השררה גם ליהודים כל כף איפות בשבוע, וכן היה הנכבד הקונדושטבלו הנ"ל לוקח הקמח בכל שבוע בביתו, והיה לש ואופהו ומחלקו לעניים, גם עשה טרמנציון שלא יהיה שום אחד רשאי למלאות ולסגור הבאר הגדול שעשה בעד הפועלים ויתר הקהל י"ל לצורכם, וזה היה בזמן דוקוס מורו יר"ק.

בזמן הנכ"ר אבא דלמדיגו בן הרב ר' שמריה ז"ל, עשה על ידי אחיו מהר"ר משה עם משי' יירונימו לנדו ההגמון הרבה קיומים לעזר הקהל, וכמו כן בעד הס"ת שמוצאין להגמונים, וכן הרבה דברים אחרים לעזרתנו, והחרים מי' יירונימו הנ"ל מי שיעבור על דבריו.

בהיותו הנ"ר אלישע אשטרוק קונדושטבלו, עשה טרמנציון בעד הקצבים ההולכים חוץ לעיר לקנות, שלא יהיה אדם רשאי להכותם ולגזול מהם הבהמות, ומשימים השררה קנס לקשטילייני.

בהיותו הכ"ר שתבי בריביניאה קונדושטבלו לקהלתנו, עשה טרמנציון בעד החגות שיוכלו יהודים {צג} לעשות מלאכתם בקהל.

בהיותו הנ"ר שבתי קזאני קונדושטבלו לקהלתנו, עשה בעד החזנים שיהיו תחת רשות הקונדושטבלו וחשבניו, ויראו לו חשבון מנכסי הכנסת, וגם הרבה טרמנציוני לעזר הקהל.

יש לדעת כי כ"ר דוד מוורגונטו בהשתדלות הטוב, בהיותו שליח לשררה, עשה הרבה קיומים לעזרתנו בעד החוגות, בעד הפרולא של ערב שבת וימים טובים, ושיוכלו עשרה בני אדם ללך בנר אחד בלילה, וכן עשה גם כן לבני קשטילי, והשתדל בצורכי ציבורו באמנה. תנצב"ה.